EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Applications nos. 36834/14 and 55133/14
Vitaliy Oleksandrovych AKHRAMEYEV against Ukraine
and Vitaliy Vitaliyovych SHUSHAR against Ukraine

The European Court of Human Rights (Fifth Section), sitting on 8 April 2021 as a Committee composed of:

Stéphanie Mourou-Vikström, *President,*
Jovan Ilievski,
Mattias Guyomar, *judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on 28 April and 30 July 2014 respectively,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicants, Mr Vitaliy Oleksandrovych Akhrameyev and Mr Vitaliy Vitaliyovych Shushar, were born in 1955 and 1983 and live in Kyiv and Cherkasy, respectively.

The applicants were represented by Mr O. Baydyk and Mr A. Popelnyukh, lawyers practising in Kyiv and Cherkasy.

The applicants took part in the series of mass protests in Ukraine between 21 November 2013 and 21 February 2014; protests commonly referred to as "Euromaidan" and/or "Maidan". In this connection they were arrested by the police.

The applicants' related complaints under Article 5 §§ 1 and 3 of the Convention concerning their detention and under Article 11 concerning the alleged violation of their right to freedom of peaceful assembly were communicated to the Ukrainian Government ("the Government"), who submitted observations on the admissibility and merits. The observations were forwarded to the applicants' representatives, who were invited to

submit observations on behalf of the applicants. No observations were submitted.

By letters dated 22 November 2016 and 31 January 2017, sent by registered post, the applicants' representatives were notified that the period allowed for submission of the observations had expired on 25 June and 9 November 2016, respectively, and that no extension of time had been requested. Their attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike an application out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. No response has followed from either representative.

THE LAW

Having regard to the similar subject-matter of the applications, the Court finds it appropriate to examine them jointly in a single decision.

In the light of the foregoing, and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention and the Protocols thereto, the Court, in accordance with Article 37 § 1 (a) of the Convention, considers that it is no longer justified to continue the examination of the applications.

Accordingly, they should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Decides to strike the applications out of its list of cases.

Done in English and notified in writing on 29 April 2021.

Viktoriya Maradudina Acting Deputy Registrar	Stéphanie Mourou-Vikström President